



File No.: E/07920/2020

RESOLUTION FOR ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 18, 2018, a document from the Catalan Agency for Data Protection was received by the Spanish Agency for Data Protection, regarding the matter "Transfer of prior information No. IP ***IP.1," due to the existence of a presumed violation of data protection legislation by FUSTER ADMINISTRADORES, S.L. with NIF B65387029 (hereinafter, the complained party) for using the personal data of Ms. A.A.A. (hereinafter, the complainant) to change the ownership of a water supply and meter maintenance contract for a property of which she was a tenant, when she only consented to the processing of her bank account personal data by the complained party, to proceed with the change of direct debit for the aforementioned supply.

Attached is a copy of the file and a copy of the resolution dated October 8, 2018, adopted in the aforementioned prior information, which is reproduced here in its entirety:

"Identification of the file

Prior information No. IP ***IP.1, regarding Aqualogy Solutions, SAU

Background

1. On June 27, 2018, a document was received by the Catalan Data Protection Authority (APDCAT) from a person who filed a complaint by Ms. A.A.A. against Aqualogy Solutions, SAU (hereinafter, MUSA), regarding a presumed non-compliance with personal data protection regulations. Specifically, the complainant stated that on June 1, 2018, she signed a lease agreement with the owner of a certain property located in ***PROVINCIA.1. She added that she agreed with the owner and the property administrator not to change the ownership of the water contract (the owner would be the property administrator, according to the complainant), but she did authorize the administrator to proceed with the change of bank account for the water supply service provider. Subsequently, the complainant indicated that on June 27, 2018, she received at her address, C/ Jorge Juan, 6, a contract from MUSA, where her personal data (such as name and surname, ID number, address, or IBAN of the bank account) were already included.

The complainant provided various documents related to the reported facts.

2. The Authority opened a prior information phase (IP ***IP.1), in accordance with the provisions of Article 7 of Decree 278/1993, of November 9, on the sanctioning procedure applicable to the areas of competence of the Generalitat, and Article 55.2 of Law 39/2015, of October 1, on the common administrative procedure of public administrations (hereinafter, LPAC), in order to determine whether the facts were susceptible to motivate the initiation of a sanctioning procedure, the identification of the person or persons who could be responsible, and the relevant circumstances that occurred.

3. On June 29, 2018, within this prior information phase, the Inspection Area of the Authority conducted a series of checks via the Internet regarding the reported facts. Specifically, access was made to the "Templates" section of the Aqualogy Solutions, SAU website (***URL.1). Within this section, the following documents were consulted:

- Template for "CONTRACT SUBROGATION," used in case of a change of ownership.
- "PRIVACY POLICY."

4. On the same date, the Inspection Area of the Authority also accessed the "Contract the Service" section of the Aigües de ***PROVINCIA.1, Metropolitan Company for Integrated Water Cycle Management, SA website (***URL.2). Within this section, the following documents were consulted, which are attached to this diligence:

Contract for "Water Supply."

"Authorization letter for contracting," version "Individuals."

5. In this information phase, on July 3, 2018, MUSA was requested to inform, among other things, about the source from which the complainant's data (name and surname, ID number, address, and

IBAN) were obtained; what was the specific legal basis that justified the processing of the reported data; as well as the reasons why the privacy policy informs interested parties of the possibility of filing a complaint, only before the Spanish Agency for Data Protection.

6. Also within the framework of the information phase, on July 3, 2018, Aigües de ***PROVINCIA.1, Metropolitan Company for Integrated Water Cycle Management, SA (hereinafter, Aigües de ***PROVINCIA.1) was requested to inform, among other things, whether it had communicated the complainant's data to MUSA.

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7. On July 17, 2018, MUSA responded to the aforementioned request through a written statement in which it stated, among other things, the following:

- That on June 5, 2018, a call was received at the customer service number of Aigües de ***PROVINCIA.1 from a person identifying herself as Mrs. A.A.A., requesting to change the ownership and bank account of the water supply contract.
- That during the call, this person consented to subrogate herself in the maintenance contract of the water measurement equipment with MUSA; as well as the communication of her data to MUSA.
- That the commercial activity of MUSA does not constitute a public service; and that it operates throughout Spanish territory.

The accused entity attached various documents to the statement; as well as the audio of the disputed call.

3. On July 17, 2018, Aigües de ***PROVINCIA.1 responded to the aforementioned request through a written statement in which it stated, among other things, the following:

- That on June 5, 2018, at 1:31 PM, a request for the change of ownership and bank account of the supply subject to complaint was received at the customer service telephone service of Aigües de ***PROVINCIA.1.
- That the requesting person provided the necessary data to carry out these procedures.
- That it was explicitly asked whether the requesting person would be the new owner of the contract, to which she responded affirmatively, identifying herself as Mrs. A.A.A.
- That this person consented to subrogate herself in the maintenance contract of the meter with MUSA. For this reason, Aigües de ***PROVINCIA.1 communicated the data of the complainant to MUSA. The accused entity attached various documents and the audio of the call to the statement.

9. On July 19, 2018, and still within the framework of this preliminary information phase, the Inspection Area of the Authority carried out the following verifications:

9.1 Regarding the recording of the call provided by Aigües de ***PROVINCIA.1, the following was noted:

- That a person called the customer service of Aigües de ***PROVINCIA.1, requesting the change of ownership and bank account of the supply contract for the property rented by the complainant. This person provided the water supply contract number to the employee of Aigües de ***PROVINCIA.1 on two occasions (***CONTRACT.1).
- That the employee of Aigües de ***PROVINCIA.1 asked the caller who the current owner of the supply contract was, to which she responded that "Fuster Administradores SCA."
- That after the employee requested the address of the supply contract, the following conversation took place:

Employee of Aigües de ***PROVINCIA.1 (AB): "Will you be the new owner of the water?"

Caller (C): "Yes."

AB: "Please give me your ID number to register you as the new owner of the water."

C: "NIF.1."

AB: "Your first and last names, please?"

C: "A.A.A."

- Subsequently, the employee of Aigües de ***PROVINCIA.1 asked the caller if she wanted to subrogate herself in the maintenance contract of the water meter with MUSA. The caller responded affirmatively, as well as consenting to the communication of her data to MUSA.
- The employee of Aigües de ***PROVINCIA.1 also requested a phone number, providing ***PHONE.1, as well as the bank account number (... 1324).

9.2 The phone number provided by the caller to the employee of Aigües de ***PROVINCIA.1 (***PHONE.1) was searched through Google, confirming that the first result is linked to "Fuster Administradores SC."

9.3 Also through Google, "fuster administradores" was searched. The information displayed by the search engine, linked to the Google Maps service, associates this company with the phone number that the caller provided during the disputed call.

9.4 The inspection staff called the complainant, confirming that her voice differs from the person who called the customer service of Aigües de ***PROVINCIA.1.

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Legal Foundations

1

In accordance with Article 5 of Law 32/2010, of October 1, of the Catalan Data Protection Authority, and Article 15 of Decree 48/2003, of February 20, which approves the Statute of the Catalan Data Protection Agency, the director of the Catalan Data Protection Authority is the competent body to exercise the inspection power and the sanctioning power in relation to the processing of personal data carried out by the entities included in Article 156 of the Statute of Autonomy of Catalonia and in Article 3 of Law 32/2010.

In this case, however, the entity that could be responsible for the processing of the personal data subject to the complaint is not included within the cases that fall under the competence of this Authority, as provided for in the aforementioned provisions. The complaint identified the entity being reported as MUSA, an entity that falls within the jurisdiction of this Authority. However, as has been indicated in the background, this Authority has verified that the processing of personal data referred to in the complaint would not be attributable to the reported entity, but to the entity Fuster Administradores SL, which, as inferred from the investigative actions carried out, would have called the customer service of Aigües de ***PROVINCIA.1 impersonating the identity of the person making the complaint here. During this call, the interlocutor asserted that she was the complainant and consented to the subrogation in the maintenance contract of the measuring equipment.

Thus, the determination of any responsibilities that Fuster Administradores SC may have incurred for the processing of personal data subject to the complaint would fall outside the jurisdiction of the Catalan Data Protection Authority.

2 In accordance with what is stated in legal foundation 1, and given that in accordance with Article 141 of Law 40/2015, of October 1, on the legal regime of the public sector, public administrations are obliged to respect the legitimate exercise of the competencies of other administrations, it is deemed appropriate to transfer these preliminary actions to the Spanish Data Protection Agency, for the purpose of clarifying any responsibilities that may have been incurred.

3 Next, it is appropriate to address the actions of Aigües de ***PROVINCIA.1 and MUSA, given that the processing of personal data carried out by these entities would indeed fall within the jurisdiction of this Authority. In this regard, the National Court, in its ruling of 10/13/2017 (appeal ***RECURSO.1), in a case where the identity of the complainant had been impersonated, states that:

"However, this Chamber considers, as can be inferred from the documentation incorporated into the proceedings, that the personal data of the complainant were processed without her consent by Gas Natural Sur when processing a change of ownership of the electricity contract of C/ Jorge Juan, 6."

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a residence in her name, which has not been evidenced either through written contract or through

recording of the telephone conversation invoked by the acting entity. Subsequently, up to five invoices were issued for the electricity supply contract in the name of said complainant, corresponding to the residence of which she was a tenant, for the period between 21/03/13 and 17/11/13.

GNS processed the personal data of the complainant by incorporating it into its database and issuing invoices in her name. It is necessary for the data subject to unequivocally consent to their processing, and in this case, the consent of the complainant for such processing has not been evidenced.

In the present case, it is important to highlight that it was the interlocutor from the entity Fuster Administradores SC, who, impersonating the complainant here, provided her personal data to Aigües de ***PROVINCIA.1 for the subrogation in the maintenance contract of the measuring equipment (in this latter case, Aigües de ***PROVINCIA.1 acted as the manager of MUSA), which is evidenced through the recording of the call that has been submitted. In this conversation, the person who impersonated the complainant provided her name and surname and ID number ("A.A.A." with ID "****NIF.1"), the water supply contract number (***CONTRATO.1), the then holder of the contract (Fuster Administradores SC), and the supply address, so Aigües de ***PROVINCIA.1 cannot be held liable for a lack of diligence in verifying the identity of the person from whom it collected her data. Furthermore, MUSA acted with due diligence in the processing subject to the complaint, as it sent the contract for the change of holder of the water measuring equipment maintenance contract to the address of the complainant referred to in the contract, in order to have it signed and thus have the unequivocal consent of the interested party evidenced.

It should be noted that the submitted recording also states that Aigües de ***PROVINCIA.1 would send the contract for the change of the holder of the water supply to the supply address.

In accordance with all the above, and given that during the preliminary information it has not been evidenced that there are rational indications that allow imputing any fact that could constitute any of the infringements provided for in the applicable legislation, it is appropriate to agree to archive these proceedings, without prejudice to the measures required in the legal basis 4th. Article 89 of the LPAC, in accordance with Articles 10.2 and 20.1 of Decree 278/1993, provides that it is appropriate to archive the proceedings when it is evident during the instruction of the procedure that the following is manifest: "d) When there is no or it has not been possible to identify the person or persons responsible or they appear to be exempt from liability."

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4. Article 58.2.d) of the GDPR empowers supervisory authorities, in the exercise of their corrective powers, to order the data controller or processor to ensure that the processing operations comply with the provisions of this regulation. Likewise, Article 8.2.c) of Law 32/2010 empowers the director of the Authority to require data controllers and processors to adopt the necessary measures to align the processing of personal data under investigation with current legislation.

It is by virtue of this authority that, despite the decision to archive based on the arguments expressed above, it is deemed appropriate to require MUSA to carry out the following actions within a maximum period of 10 days from the day following the notification of this resolution:

4.1 Regarding the right to information

In the context of the preliminary actions, it has been established that MUSA informs the interested parties of the possibility of filing a complaint only with the Spanish Agency for Data Protection. In this regard, MUSA considers that it carries out a commercial activity that does not constitute a public service, as no regulation classifies the sale and maintenance of meters as a public service activity owned by a Catalan administration. Furthermore, MUSA states that it operates throughout the Spanish territory.

Well, as stated in the contract signed between Aigües de ***PROVINCIA.1 and MUSA dated 01/01/2016 (provided by MUSA in response to the Authority's request), one of the material elements of the public service of water supply is the measuring equipment (art. 26 of the Metropolitan Water Cycle Service Regulation). In fact, the measurement of consumption through water measuring equipment is

what serves as the basis for the billing of water supply by the supplying entity (art. 45 of the aforementioned Regulation).

Moreover, it is necessary to mention that Aigües de ***PROVINCIA.1 in its letter dated 17/07/2018 also confirms that "the correct provision of the supply service necessarily involves the proper maintenance of the meter or measuring equipment."

Thus, it is appropriate to conclude that the activity carried out by MUSA should be considered inherent to the public service of water supply, and therefore the data processing carried out in the context of the provision of this service falls within the scope of the authority of this Authority (art. 3 of Law 32/2010). On the other hand, the circumstance invoked by MUSA regarding its provision of services throughout the Spanish state does not exempt it from providing the correct information to the affected individuals, as a result of the existing distribution of competences. And, in any case, in the documents that the inspection staff...

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It was agreed on 29/06/2018 (as indicated in antecedent 3), there are constant references to the Metropolitan Regulation of the Integrated Water Cycle Service, which makes it obvious that the territorial scope of these documents is restricted to the Metropolitan Area of ***PROVINCE.1.

Thus, it is appropriate to require MUSA to modify the information provided to users regarding the treatments related to the provision of water supply services in Catalonia, concerning the right to file a complaint with the Catalan Data Protection Authority, within the aforementioned timeframe.

4.2

On the processing of data.

Given that it has been established in these proceedings that the affected person did not actually consent to substitute themselves in the maintenance contract of the measuring equipment, it is appropriate to require MUSA to delete (without prejudice to its blocking) the data of the complainant linked to the maintenance contract of the measuring equipment, unless their consent was obtained (in case they signed the contract sent to their home for signature).

Once the corrective measures described within the specified timeframe have been adopted, within the following 10 days, MUSA will inform the Authority, without prejudice to the inspection authority of this Authority to carry out the corresponding verifications.

5. As stated in the previous legal basis, the personal data protection regulations empower the director of the Authority to order the data controller or processor to ensure that the processing operations comply with current legislation. It is by virtue of this authority that, despite the decision to archive based on the arguments expressed above, it is deemed appropriate to require Aigües de ***PROVINCE.1 to revert the change of ownership of the water supply contract within a maximum period of 10 days from the day following the notification of this resolution, unless the consent of the complainant was obtained (in case they signed the contract sent to their home).

In this regard, it has been established in these proceedings that the affected person did not actually consent to the change of ownership of the water supply contract. However, the complainant admitted in their complaint that they had authorized the property manager to manage the change of bank account. For this reason, although this data was provided by a person impersonating the complainant linked to the property management, Aigües de ***PROVINCE.1 could continue processing the personal data of the complainant necessary to collect the water supply to their bank account.

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Once the corrective measures described within the specified timeframe have been adopted, within the following 10 days, Aigües de ***PROVINCE.1 will inform the Authority, without prejudice to the inspection authority of this Authority to carry out the corresponding verifications.

For all these reasons,

I resolve:

1. To transfer the referenced proceedings to the Spanish Agency for Data Protection, with a copy of this resolution translated into Spanish, regarding the processing of personal data of the complainant, carried out by the entity Fuster Administradores.
2. To archive the prior information proceedings number IP ***IP.1, regarding Aqualogy Solutions, SA and Aigües de ***PROVINCE.1, Metropolitan Company for the Management of the Integrated Water Cycle, SA.
3. To require MUSA to adopt the corrective measures indicated in legal basis 4 and to certify before this Authority the actions taken to comply with them.
4. To require Aigües de ***PROVINCE.1 to adopt the corrective measures indicated in legal basis 5 and to certify before this Authority the actions taken to comply with them.
5. To notify this resolution to MUSA and Aigües de ***PROVINCE.1; and to communicate it to the complainant.
6. To order the publication of the resolution on the Authority's website (***URL.3), in accordance with Article 17 of Law 32/2010, of October 1.

Against this resolution, which concludes the administrative procedure in accordance with Article 14.3 of Decree 48/2003, of February 20, which approves the Statute of the Catalan Data Protection Agency, the entity being complained against may, optionally, file a motion for reconsideration before the director of the Catalan Data Protection Authority, within one month from the day following its notification, in accordance with the provisions of Article 123 and following of Law 39/2015. They may also directly file a contentious-administrative appeal before the contentious-administrative courts, within two months from the day following its notification, in accordance with Articles 8, 14, and 46 of Law 29/1998, of July 13, regulating contentious-administrative jurisdiction.

Likewise, the entity being complained against may file any other appeal they deem appropriate to defend their interests.

SECOND: By virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and of

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In accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, and on October 13, 2020, directed a request for information to the party being complained about, of which receipt is recorded on the same date, according to the acknowledgment of receipt in the file, a request that was not attended to by this party.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Principles Relating to Processing

The GDPR provides the following:

"Article 6 Lawfulness of processing

1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes; (...)"

"Article 83 General conditions for imposing administrative fines

...

5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

In the present case, the complainant stated that on June 1, 2018, they entered into a lease agreement, agreeing with the owner and the property manager (the party being complained about) not to change the ownership of the water supply contract, which was in the name of the party being complained about, authorizing only this party to make the change of bank account with the supplier company of the water supply service (Aigües de ***PROVINCIA.1).

On June 27, 2018, they received, at their home, a contract from MUSA, where their personal data (such as name and surname, ID number, address, or IBAN number of the bank account) were already included.

The preliminary information carried out by the APDCAT concludes that, on June 5, 2018, a person belonging to the party being complained about called the customer service of Aigües de ***PROVINCIA.1, and, providing the complainant's data (name and surname, ID number, address, or IBAN number of the bank account) as well as the current water supply contract (holder and contract number), proceeded to change the ownership of the aforementioned contract and to authorize the subrogation in the maintenance contract of the meter, both in the name of the party being complained about.

The conduct of the party being complained about, consisting of communicating to Aigües de ***PROVINCIA.1 (which in turn communicated them to MUSA, responsible for processing on behalf of the former), the personal data of the complainant without their consent, for the change of ownership in their name of the water supply and meter maintenance contracts, constituted unlawful processing of data as indicated in the aforementioned Article 6.1.a) of the GDPR, which is typified in Article 83.5.a) of the referred GDPR.

However, it should be noted that the LOPDGDD establishes:

"Article 72. Very serious infringements.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

Article 75. Interruption of the prescription of the infringement.

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The initiation of the sanctioning procedure, with the knowledge of the interested party, will interrupt the statute of limitations, and the statute of limitations will restart if the sanctioning file has been suspended for more than six months due to causes not attributable to the alleged infringer. (...)”

III

Conclusions

Considering that on June 5, 2018, the processing of the personal data of the claimant occurred without consent when communicated by the defendant to Aigües de ***PROVINCIA.1 (which in turn communicated it to MUSA, responsible for processing on behalf of the first), the alleged infringement would be considered time-barred according to the aforementioned regulations, given that, in accordance with Article 30.2 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, “the statute of limitations for infringements begins to be counted from the day the infringement was committed,” having elapsed the three-year period without the initiation of a sanctioning procedure. Notwithstanding the above, it should be noted that the resolution adopted by the AGPCAT on October 8, 2018, required Aigües de ***PROVINCIA.1 to revert the change of ownership of the water supply contract within a maximum period of 10 days from the day following its notification, unless the consent of the claimant had been obtained through the signing of a new contract sent to their home. In the same terms, it required MUSA to delete their personal data linked to the maintenance contract of the measuring equipment, unless their consent had been obtained through the signing of a new contract sent to their home.

Thus, the processing of the claimant's data, without their consent, which resulted in the change of ownership of the water supply contract (Aigües de ***PROVINCIA.1) and the maintenance contract of the meter (MUSA), can be presumed to have had no effects beyond the period imposed by the aforementioned resolution of the APDCAT to revert the ownership of both contracts, given that no new claim has been made by the claimant regarding this processing.

Therefore, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to FUSTER ADMINISTRADORES, S.L. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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